

SUPREME COURT OF THE STATE OF NEW YORK	)	<u>SUMMONS</u>
COUNTY OF NEW YORK	)	
-----x	)	Index #: _____/2023
DANILO BAUTISTA,	)	
	)	Plaintiff designates:
Plaintiff,	)	New York County
	)	as the place of trial
-against-	)	
	)	Basis of the venue is:
THE CITY OF NEW YORK, THE NEW YORK CITY	)	Plaintiff's home address
POLICE DEPARTMENT ("NYPD"), POLICE OFFICER	)	
TYESHA MCCLOUD, SGT. ALAN HASSEL, POLICE	)	Plaintiff's address is:
OFFICER JOSEPH BONARDI, POLICE OFFICER	)	60 West 104 th Street, Apt. 1A
NUNZIO VETRANO, JOHN DOES #1-5 and JANE DOES	)	New York, New York 10005
#1-5,	)	
Defendant(s).	)	
-----x	)	

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance upon the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant addresses:	
THE CITY OF NEW YORK	
c/o CORPORATION COUNSEL OF	
THE CITY OF NEW YORK	
100 Church Street	
New York, New York 10007	
THE NEW YORK CITY POLICE	
DEPARTMENT	
c/o CORPORATION COUNSEL OF THE	
CITY OF NEW YORK	
100 Church Street	
New York, New York 10007	
THE NEW YORK CITY POLICE	
DEPARTMENT	
c/o 24th PRECINCT	

151 West 100th Street New York, New York 10025 POLICE OFFER TYESHA MCCLOUD THE NEW YORK CITY POLICE DEPARTMENT c/o 24th PRECINCT 151 West 100th Street New York, New York 10025 SGT. ALAN HASSEL THE NEW YORK CITY POLICE DEPARTMENT c/o 24th PRECINCT 151 West 100th Street New York, New York 10025 POLICE OFFICER JOSEPH BONARDI THE NEW YORK CITY POLICE DEPARTMENT c/o 24th PRECINCT 150 West 100th Street New York, New York 10024 POLICE OFFICER NUNZIO VETRONA THE NEW YORK CITY POLICE DEPARTMENT c/o 24th PRECINCT 151 West 100th Street New York, New York 10024	
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Dated: Brooklyn, New York
July 9, 2023

Plaintiff, **DANILO BAUTISTA**, by his attorneys, **EZRA B. GLASER AND ASSOCIATES**,
complaining of the defendants herein upon information and belief, respectfully shows to this Court,
and alleges as follows:

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States. Plaintiff also brings this action for violation of his rights under New York State law.

2. That on August 20, 2022, and at all times hereinafter mentioned, the Plaintiff, DANILO BAUTISTA is and was a resident of New York County, City and State of New York.

3. That at all times hereinafter mentioned, the Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
4. That on August 20, 2022 and at all times hereinafter mentioned, the Defendant, THE CITY OF NEW YORK, maintains, controls and manages the Defendants, THE NEW YORK CITY POLICE DEPARTMENT (hereinafter, "NYPD"), a duly authorized public authority, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.
5. That on August 20, 2022, and at all times hereinafter mentioned, POLICE OFFICER TYESHA MCCLOUD, SGT. ALAN HASSEL, POLICE OFFICER JOSEPH BONARDI, and POLICE OFFICER NUNZIO VETRANO, JOHN DOES #1-5 and JANE DOES #1-5, were and are employees of the NYPD and stationed within the 24th precinct of Manhattan, a subdivision of the NYPD, and were acting under the auspices and/or authority of the NYPD and THE CITY OF NEW YORK with respect to all matters contained herein.

AS AND FOR A FIRST CAUSE OF ACTION
(Violation of Plaintiff's Civil Rights Pursuant to 42 U.S.C. § 1983)

6. That on August 20, 2022, and at all times hereinafter mentioned, the NYPD and THE CITY OF NEW YORK, either directly or through its employees, agents and/or servants, and specifically, the above-referenced officers, POLICE OFFICER TYESHA MCCLOUD, POLICE OFFICER JOSEPH BONARDI, SGT. ALAN HASSEL, and POLICE OFFICER NUNZIO VETRANO, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

7. That on or about August 20, 2022, and at all times hereinafter mentioned, Plaintiff, DANILO BAUTISTA became a prisoner and/or inmate unlawfully detained by THE CITY OF NEW YORK, the NYPD, POLICE OFFICER TYESHA MCCLOUD, SGT. ALAN HASSEL, POLICE OFFICER JOSEPH BONARDI, and POLICE OFFICER NUNZIO VETRANO, JOHN DOES #1-5 and JANE DOES #1-5, of the 24th Precinct in the County of New York, City of New York.
8. That on August 20, 2022, and at all times hereinafter mentioned, each and all of the intentional and/or malicious acts perpetrated by the Defendants, THE CITY OF NEW YORK, the NYPD, POLICE OFFICER TYESHA MCCLOUD, POLICE OFFICER JOSEPH BONARDI, SGT. ALAN HASSEL, and POLICE OFFICER NUNZIO VETRANO were performed while acting within the scope of their employment by the Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
9. That on August 21, 2022, and at all times hereinafter mentioned, THE CITY OF NEW YORK, the NYPD, POLICE OFFICER TYESHA MCCLOUD, POLICE OFFICER JOSEPH BONARDI, SGT. ALAN HASSEL, POLICE OFFICER NUNZIO VETRANO, JOHN DOES #1-5 and JANE DOES #1-5, upon information and belief, were and are Police Officers and/or police personnel employed by THE CITY OF NEW YORK and the NYPD at the time of the events at issue in this lawsuit.
10. That at all times hereinafter mentioned, each and all of the acts of the above-referenced Defendants alleged herein were performed by said Defendants while acting in furtherance of their employment by the Defendants, THE CITY OF NEW YORK and the NYPD, including but not limited to POLICE OFFICER TYESHA MCCLOUD, POLICE

OFFICER JOSEPH BONARDI, SGT. ALAN HASSEL, POLICE OFFICER NUNZIO VETRANO, JOHN DOES #1-5 and JANE DOES #1-5.

11. That on August 20, 2022, upon information and belief, the Plaintiff, DANILO BAUTISTA was falsely accused of intent to cause physical injury to another person by means of a dangerous weapon. He was falsely accused of the aforesaid criminal act or acts after acting in self-defense after being brutally attacked by a perpetrator who punched and kicked and/or stumped his body. He was arrested by police officers from the 24th Precinct of the New York Police Department at around 7:00 p.m. on August 20, 2022 as a result of the shoddy investigation and/or false arrest of THE CITY OF NEW YORK and the NYPD, including but not limited to POLICE OFFICER TYESHA MCCLOUD, POLICE OFFICER JOSEPH BONARDI, SGT. ALAN HASSEL, POLICE OFFICER NUNZIO VETRANO, JOHN DOES #1-5 and JANE DOES #1-5.
12. That based on the aforementioned false allegations, on or about August 20, 2022, the Plaintiff was arrested, placed into a cell and imprisoned in the course of 2 days and was formally arraigned and processed on August 21, 2022, at approximately 7:00 pm. This arrest has caused the Plaintiff, DANILO BAUTISTA, to be hospitalized after a rise in blood pressure and anxiety caused by the unlawful detention.
13. That on or about August 20, 2022, while Plaintiff, DANILO BAUTISTA was being processed/ and or arrested, officers of the NYPD within the 24th Precinct took his high school ring (that was worth approximately \$2,000.00) but did not return it to him.
14. That the criminal charges filed against the Plaintiff were patently false and dismissed due to insufficient evidence. (CPL 170.30 (1) (f), Sealed 160.50).

15. That the forgoing false arrest was committed due to the recklessness, carelessness and negligent conduct of the Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER TYESHA MCCLOUD, POLICE OFFICER POLICE OFFICER JOSEPH BONARDI, SGT. ALAN HASSEL and POLICE OFFICER NUNZIO VETRANO, JOHN DOES #1-5 and JANE DOES #1-5 (hereinafter referred to alternatively as “the individual Defendants”), at the time of the events at issue in this lawsuit, who allowed, set up, created and reinforced the false allegation and the false arrest of Plaintiff, which was committed while the aforementioned officers were acting within the scope of their responsibilities for the Defendants, THE CITY OF NEW YORK and the NYPD.
16. That the acts complained of were carried out by the aforementioned individual Defendants, POLICE OFFICER TYESHA MCCLOUD, POLICE OFFICER POLICE OFFICER JOSEPH BONARDI, SGT. ALAN HASSEL and POLICE OFFICER NUNZIO VETRANO, JOHN DOES #1-5 and JANE DOES #1-5 in their capacities as Police Officers within the NYPD, with all the actual and/or apparent authority attendant thereto.
17. That the acts complained of were carried out by the aforementioned police officers, POLICE OFFICER TYESHA MCCLOUD, POLICE OFFICER JOSEPH BONARDI, SGT, ALAN HASSEL and POLICE OFFICER NUNZIO VETRANO, JOHN DOES #1-5 and JANE DOES #1-5, employees of the NYPD, in their capacities as officers of the NYPD and/or THE CITY OF NEW YORK, pursuant to the customs, policies, usages, practices, procedures, and rules of the NYPD and THE CITY OF NEW YORK, and under the supervision of ranking officers of the NYPD.

18. The individual Defendants withheld exculpatory evidence from the Office of the District Attorney.
19. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff DANILO BAUTISTA
20. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff DANILO BAUTISTA.
21. Defendants acted with malice in initiating criminal proceedings against Plaintiff DANILO BAUTISTA.
22. Defendants were directly and actively involved in the continuation of criminal proceedings against Plaintiff DANILO BAUSTISTA.
23. Defendants lacked probable cause to continue criminal proceedings against Plaintiff DANILO BAUSTISTA.
24. Defendants acted with malice in continuing criminal proceedings against Plaintiff DANILO BAUSTISTA.
25. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.
26. The allegations made against the Plaintiff were unsubstantiated and false and the criminal case brought against him was dismissed on August 22, 2022.
27. That on August 20, 2022, and at all times hereinafter mentioned, each and all of the acts committed by POLICE OFFICER TYESHA MCCLOUD, SGT. ALAN HASSEL, POLICE OFFICER JOSEPH BONARDI, and POLICE OFFICER NUNZIO VETRANO, JOHN DOES #1-5 and JANE DOES #1-5, employees of the NYPD and/or THE CITY OF NEW

YORK were performed while acting within the scope of their employment by the defendant, the NYPD and THE CITY OF NEW YORK.

28. That on or about November 11, 2022, and within the time prescribed by law, a Notice of Intention to Make Claim was filed and served upon the defendants THE CITY OF NEW YORK, the NYPD, POLICE OFFICER TYESHA MCCLOUD, SGT. ALAN HASSEL, POLICE OFFICER JOSEPH BONARDI, and POLICE OFFICER NUNZIO VETRANO.
29. That because of the unlawful arrest, illegal search and harassment, the Plaintiff DANILO BAUTISTA was caused to sustain permanent personal injuries, including but not limited to negligent infliction of emotional distress, bodily injuries, intentional infliction of emotional distress, false arrest, false imprisonment, violation of the Plaintiff's civil rights under the U.S. Constitution, violation of the Plaintiff's rights under 42 U.S.C. § 1983, pain, shock, mental anguish; that these injuries and their effects will be permanent.
30. All of the aforementioned acts deprived Plaintiff DANILO BAUTISTA of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
31. As a result of the foregoing, Plaintiff is entitled to compensatory damages in a sum exceeding the jurisdiction of all courts lower than the Supreme Court that would otherwise have jurisdiction on the first cause of action.

AS AND FOR A SECOND CAUSE OF ACTION
(Malicious Prosecution Under 42 U.S.C. § 1983)

32. At all times hereinafter mentioned, Plaintiff, DANILO BAUTISTA repeats, reiterates and realleges each and every allegation set forth above numbered "1" through "31" with the same force and effect as if fully set forth herein.

33. At all times hereinafter mentioned, the each and all of the Defendant police officers and/or employees of THE NEW YORK CITY POLICE DEPARTMENT were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of THE NEW YORK CITY POLICE DEPARTMENT and the State or City of New York.
34. At all times hereinafter mentioned, each and all of the acts committed by employees of the NYPD and/or THE CITY OF NEW YORK were performed while acting within the scope of their employment by the Defendants, the NYPD and THE CITY OF NEW YORK.
35. At all times hereinafter mentioned, each and all of the acts of the above-referenced Defendants alleged herein, were performed by said Defendants while acting in furtherance of their employment with Defendants, the NYPD and/or THE CITY OF NEW YORK.
36. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as New York City Police Officers, with all the actual and/or apparent authority attendant thereto.
37. The acts complained of were carried out by the aforementioned individual Defendants in their capacity as officers of the NYPD and/or of THE CITY OF NEW YORK, with all the actual, official and/or apparent authority attendant thereto.
38. The acts complained of were carried out by the aforementioned Police Officers in their capacities as officers of the NYPD and/or THE CITY OF NEW YORK, pursuant to the customs, policies, usages, practices, procedures, and rules of the NYPD and THE CITY OF NEW YORK, all under the supervision of ranking officers of said department.

39. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented and supported by numerous civil rights actions filed against the NYPD and THE CITY OF NEW YORK.
40. The foregoing customs, policies, usages, practices, procedures and rules of the NYPD and THE CITY OF NEW YORK were the direct and proximate cause of the constitutional violations suffered by the Plaintiff, as alleged herein.
41. Defendants, the NYPD, THE CITY OF NEW YORK, POLICE OFFICER TYESHA MCCLOUD, SGT. ALAN HASSEL, POLICE OFFICER JOSEPH BONARDI, POLICE OFFICER NUNZIO VETRANO, JOHN DOES #1-5 and JANE DOES #1-5, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of the Plaintiffs.
42. Defendants, the NYPD, THE CITY OF NEW YORK, POLICE OFFICER TYESHA MCCLOUD, POLICE OFFICER JOSEPH BONARDI, SGT. ALAN HASSEL, POLICE OFFICER NUNZIO VETRANO, JOHN DOES #1-5 and JANE DOES #1-5, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct and were directly responsible for the violation of the Plaintiffs' constitutional rights.
43. All of the foregoing acts by Defendants deprived Plaintiff of federally protected rights, including, but not limited to, the right:
- i. Not to be deprived of liberty without due process of law;
 - ii. Not to have cruel and unusual punishment imposed upon him by police officers and
 - iii. To receive equal protection under the law.

44. As a result of the foregoing false arrest committed upon the Plaintiff, DANILO BAUTISTA, by the aforementioned police officers and/or other employees of the Defendants, THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK, this plaintiff sustained loss of life, freedom, liberty, embarrassment, and mental anguish.
45. As a result of the foregoing, Plaintiff is entitled to compensatory damages in the sum exceeding the jurisdiction of all courts lower than the Supreme Court that would otherwise have jurisdiction on the second cause of action.

AS AND FOR A THIRD CAUSE OF ACTION
(Abuse of Process Under 42 U.S.C. § 1983)

46. At all times hereinafter mentioned, Plaintiff, DANILO BAUTISTA repeats, reiterates and realleges each and every allegation set forth above numbered “1” through “45” with the same force and effect as if fully set forth herein.
47. All of the aforementioned acts of Defendants, their agents, servants and employees were carried out under the color of law.
48. All of the aforementioned acts deprived Plaintiff, DANILO BAUTISTA of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.
49. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as Police Officers, with all of the actual and/or apparent authority attendant thereto.
50. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as employees and/or police officers of the NYPD and THE CITY OF NEW

YORK pursuant to the customs, usages, practices, procedures, and rules of the NYPD and THE CITY OF NEW YORK, all under the supervision of ranking officers of said department.

51. Each of the Defendants, individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.
52. The aforementioned individual defendants issued legal process to place Plaintiff DANILO BAUTISTA under arrest.
53. The aforementioned individual defendants arrested Plaintiff DANILO BAUTISTA in order to obtain a collateral objective outside the legitimate ends of the legal process.
54. As a result of the foregoing, Plaintiff DANILO BAUTISTA sustained, *inter alia*, deprivation of liberty, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.
55. As a result of the foregoing, Plaintiff DANILO BAUTISTA is entitled to compensatory damages in a sum exceeding the jurisdiction of all courts lower than the Supreme Court on the third cause of action.

AS AND FOR A FOURTH CAUSE OF ACTION
(Municipal Liability Under 42 U.S.C. § 1983)

56. At all times hereinafter mentioned, Plaintiff, DANILO BAUTISTO repeats, reiterates and realleges each and every allegation set forth above numbered "1" through "55" as if the same were more fully set forth at length herein.
57. The various individual Defendants, as Police Officers and/or employees of the Defendants, the NYPD and THE CITY OF NEW YORK, including but not limited to POLICE OFFICER TYESHA MCCLOUD, SGT. ALAN HASSEL, POLICE OFFICER JOSEPH

BONARDI, POLICE OFFICER NUNZIO VETRANO, JOHN DOES #1-5 and JANE DOES #1-5 assaulted and battered and violated the constitutional rights of the Plaintiff, DANILO BAUTISTA, notwithstanding their knowledge that their actions would jeopardize the Plaintiff's well-being, safety and constitutional rights.

58. The acts complained of were carried out by the aforementioned Defendants, the NYPD, THE CITY OF NEW YORK, POLICE OFFICER TYESHA MCCLOUD, SGT. ALAN HASSEL, POLICE OFFICER JOSEPH BONARDI, POLICE OFFICER NUNZIO VETRANO, JOHN DOES #1-5 and JANE DOES #1-5 in their capacity as Police Officers and/or employees of the NYPD and/or THE CITY OF NEW YORK, with all the actual and/or apparent authority attendant thereto.
59. The acts complained of were carried out by the aforementioned Defendants, POLICE OFFICER TYESHA MCCLOUD, SGT. ALAN HASSEL, POLICE OFFICER JOSEPH BONARDI, POLICE OFFICER NUNZIO VETRANO, JOHN DOES #1-5 and JANE DOES #1-5 in their capacity as Police Officers and/or employees of the NYPD and/or THE CITY OF NEW YORK, pursuant to the customs, policies, usages, practices, procedures, and rules of the NYPD and THE CITY OF NEW YORK all under the supervision of ranking officers of said agencies or departments.
60. The aforementioned customs, policies, usages, practices, procedures and rules of the NYPD and THE CITY OF NEW YORK include, but are not limited to, the following unconstitutional practices:
- (a) Arresting an innocent person notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing;
 - (b) Subjecting an innocent person to arrest which fails to conform to fundamental standards of due process as recognized by this and other jurisdictions throughout the United States.

61. The foregoing customs, policies, usages, practices, procedures, and rules of the NYPD, THE CITY OF NEW YORK, POLICE OFFICER TYESHA MCCLOUD, SGT. ALAN HASSEL, POLICE OFFICER JOSEPH BONARDI, POLICE OFFICER NUNZIO VETRANO, JOHN DOES #1-5 and JANE DOES #1-5 were the direct and proximate cause of the constitutional violations suffered by Plaintiff, DANILO BAUTISTA as alleged herein.
62. The foregoing customs, policies, usages, practices, procedures and rules of the NYPD and THE CITY OF NEW YORK were the moving force behind the constitutional violations suffered by the Plaintiff, DANILO BAUTISTA as alleged herein.
63. The Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff, DANILO BAUTISTA.
64. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate officers and/or employees of the NYPD and/or THE CITY OF NEW YORK, and were thus directly responsible for the violation of the Plaintiff, DANILO BAUTISTA constitutional rights.
65. All of the foregoing acts by Defendants deprived Plaintiff, DANILO BAUTISTA of federally protected rights, including, but not limited to, the right:
- i. Not to be deprived of liberty without due process of law;
 - ii. To be free from seizure and arrest not based upon probable cause;
 - iii. To be free from unwarranted and malicious criminal prosecution;
 - iv. Not to have cruel and unusual punishment imposed upon him; and
 - v. To receive equal protection under the law.

66. That based on the foregoing, Plaintiff demands and amount in excess of the jurisdiction of all courts lower than the Supreme Court on the fourth cause of action.

AS AND FOR A FIFTH CAUSE OF ACTION
(Pendent State Law Claims)

67. That at all times hereinafter mentioned, Plaintiff, DANILO BAUTISTA, repeats, reiterates and realleges each and every allegation set forth above numbered "1" through "66" as if the same were more fully set forth at length herein.
68. The Plaintiff brings the within pendent state law claims against Defendants the NYPD, THE CITY OF NEW YORK, POLICE OFFICER TYESHA MCCLOUD, SGT. ALAN HASSEL, POLICE OFFICER JOSEPH BONARDI, POLICE OFFICER NUNZIO VETRANO, JOHN DOES #1-5 and JANE DOES #1-5 for arresting the Plaintiff or aiding and abetting in said actions.
69. That the foregoing attack, assault, battery, wrongful arrest and abuse of process committed by the aforesaid Police Officers and/or employees of the NYPD and/or THE CITY OF NEW YORK against the Plaintiff occurred due to the Defendants' actual malice toward Plaintiff, DANILO BAUTISTA.
70. That Plaintiff, DANILO BAUTISTA was harmed by being arrested, handcuffed, unlawfully detained and denied of his freedom. He suffered embarrassment, humiliation, as well as the loss of his good name among his peers as a result.
71. That the existence of customs, policies, usages, practices, procedures and rules of the NYPD and THE CITY OF NEW YORK, were completely ignored while the Plaintiff's civil rights were violated.

72. As a result of the foregoing, Plaintiff is entitled to compensatory damages in the sum exceeding the jurisdiction of all courts lower than the Supreme Court on the fifth cause of action.

AS AND FOR A SIXTH CAUSE OF ACTION
(Under N.Y. State Abuse of Process)

73. That at all times hereinafter mentioned, Plaintiff, DANILO BAUTISTA repeats, reiterates and realleges each and every allegation set forth above numbered “1” through “72” as if more fully set forth at length herein.
74. That the Defendants, the NYPD, THE CITY OF NEW YORK, POLICE OFFICER TYESHA MCCLOUD, SGT. ALAN HASSEL, POLICE OFFICER JOSEPH BONARDI, POLICE OFFICER NUNZIO VETRANO, JOHN DOES #1-5 and JANE DOES #1-5, are responsible for the institution or continuation of the baseless criminal case against the Plaintiff.
75. That the criminal case against the Plaintiff, DANILO BAUTISTA was dismissed in favor of the Plaintiff.
76. That the defendants, the NYPD, THE CITY OF NEW YORK, POLICE OFFICER TYESHA MCCLOUD, SGT. ALAN HASSEL, POLICE OFFICER JOSEPH BONARDI, POLICE OFFICER NUNZIO VETRANO, JOHN DOES #1-5 and JANE DOES #1-5 did not have enough facts to allow a reasonable person to infer that the Plaintiff, DANILO BAUTISTA acted in self-defense after being brutally acted by another individual who punched and kicked and/or stomped on his body.
77. That the defendants the NYPD, THE CITY OF NEW YORK, POLICE OFFICER TYESHA MCCLOUD, SGT. ALAN HASSEL, POLICE OFFICER JOSEPH BONARDI,

POLICE OFFICER NUNZIO VETRANO, JOHN DOES #1-5 and JANE DOES #1-5, initiated or continued the initial case with an improper purpose and abused the legal process.

78. That due to the allegations brought by the Defendants, the NYPD, THE CITY OF NEW YORK, POLICE OFFICER TYESHA MCCLOUD, SGT. ALAN HASSEL, POLICE OFFICER JOSEPH BONARDI, POLICE OFFICER NUNZIO VETRANO, JOHN DOES #1-5 and JANE DOES #1-5, the Plaintiff, DANILO BAUTISTA, was harmed by being falsely accused and arrested, suffering embarrassment, humiliation, as well as loss of good name among his peers and family.
79. That by reason of the foregoing, the Plaintiff, DANILO BAUTISTA was damaged in a sum exceeding the jurisdiction of all courts lower than the Supreme Court on the sixth cause of action.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Negligent Hiring/Training/Retention)

80. That at all times hereinafter mentioned, Plaintiff, DANILO BAUTISTA, repeats, reiterates and realleges each and every allegation set forth above numbered “1” through “79” as if more fully set forth at length herein.
81. That the Defendants failed to exercise reasonable care and diligence in the selection and hiring of its agents, servants and employees.
82. That the Defendants failed to exercise reasonable care and diligence in the selection, screening, retention, engagement, employment, supervision and training of its agents, servants and employees.

83. That by reason of the foregoing, Plaintiff, DANILO BAUTISTA, was damaged in a sum exceeding the jurisdiction of all courts lower than the Supreme Court on the seventh cause of action.

WHEREFORE, the Plaintiff, DANILO BAUTISTA, demands judgment in a sum exceeding the jurisdiction of all courts lower than the Supreme Court that would otherwise have jurisdiction on the first, second, third, fourth, fifth, sixth and seventh causes of action, in addition to punitive damages, plus attorney's fees, costs, and disbursements of this action.

DATED: Brooklyn, New York
July 9, 2023

Yours, etc.,



BY: Ezra B. Glaser
EZRA B. GLASER & ASSOCIATES
Attorneys for the Plaintiff
DANILO BAUTISTA
3021 Fort Hamilton Parkway, Suite 1R
Brooklyn, New York 11218
Phone: (212) 385-9300

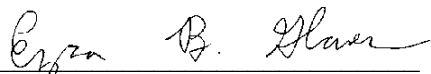
ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) ss:
COUNTY OF KINGS)

I, EZRA B. GLASER, EZRA B. GLASER & ASSOCIATES., the undersigned, an attorney admitted to practice law in the Courts of the State of New York, with offices at 3021 Fort Hamilton Parkway, Brooklyn, New York, do state the following under the penalties of perjury:

That I am the attorney for the plaintiff in the within action; that I have read the foregoing VERIFIED COMPLAINT and know the contents thereof; that the same is true to my own knowledge, except as to those matters that I believe to be true. The reason this verification is being made by me and not by my client is that my client is not presently within the county wherein I maintain my offices and does not reside in the county wherein I maintain my offices. The grounds of my belief as to all matters are stated upon my own knowledge based on the investigative materials in my file and the investigation conducted by my office.

Dated: Brooklyn, New York
July 9, 2023



Ezra B. Glaser, Esq.

Index #: _____/2023

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X
DANILO BAUTISTA,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT
("NYPD"), POLICE OFFICER TYESHA MCCLOUD, SGT. ALAN HASSEL,
POLICE OFFICER JOSEPH BONARDI, POLICE OFFICER NUNZIO
VETRANO, JOHN DOES #1-5 and JANE DOES #1-5,

Defendants.

-----X
SUMMONS AND COMPLAINT
-----X

EZRA B. GLASER & ASSOCIATES.

Attorneys for the Plaintiff

DANILO BAUTISTA

3021 Fort Hamilton Parkway, Suite 1R

Brooklyn, New York 11218

Phone: (212) 385-9300

Fax: (347) 282-2296